commencing date of benefits is earlier than the date of final agency action.

(c) *Chapter 31.* Payments under 38 U.S.C. chapter 31 to a school or training establishment may be authorized only through the date of the enrolled veteran's program.

(d) *Reporting fees.* The annual reporting fee authorized by § 21.4206 is payable to a school which is found not to be in compliance only for those veterans or eligible persons continued in enrollment, as authorized by paragraph (b) of this section, as of October 31 of each year.

§ 21.4379 Posttermination compliance.

When an institution has been found by the Veterans Administration not to be in compliance, and subsequently is found to be in a status of compliance, payments otherwise in order may be authorized commencing the date certified by the responsible agency official.

JUDICIAL STANDARDS OF PRACTICE

§ 21.4390 Conduct.

Parties and their representatives are expected to conduct themselves with honor and dignity and observe judicial standards of practice and ethics in all proceedings. They should not indulge in offensive personalities, unseemly wrangling, or intemperate accusations or characterizations. A representative of any party whether or not a lawyer shall observe the traditional responsibilities of lawyers as officers of the court and use his best efforts to restrain his principal from improprieties in connection with a proceeding.

§ 21.4391 Improper conduct.

With respect to any proceeding it is improper for any interested person to attempt to sway the judgment of the responsible agency official by undertaking to bring pressure or influence to bear upon him or any officer having a responsibility for a decision in the proceeding, or his decisional staff. It is improper that such interested persons or any members of the Veterans Administration's staff or the presiding officer give statements to communications media, by paid advertisement or otherwise, designed to influence the judgment of any officer having a responsibility for a decision in the proceeding, or his decisional staff. It is improper for any person to solicit communications to any such officer, or his decisional staff, other than proper communications by parties or amici curiae.

§ 21.4392 Ex parte communications.

Only persons employed by or assigned to work with the responsible agency official who perform no investigative or prosecuting function in connection with a proceeding shall communicate ex parte with the responsible agency official or the presiding officer, or any employee or person involved in the decisional process in such proceedings with respect to the merits of that or a factually related proceeding. The responsible agency official, the presiding officer, or any employee or person involved in the decisional process of a proceeding shall communicate ex parte with respect to the merits of that or a factually related proceeding only with persons employed by or assigned to work with them and who perform no investigative or prosecuting function in connection with the proceeding.

§ 21.4393 Expeditious treatment.

Requests for expeditious treatment of matters pending before the responsible agency official or the presiding officer are deemed communications on the merits, and are improper except when forwarded from parties to a proceeding and served upon all other parties thereto. Such communications should be in the form of a motion.

§ 21.4394 Matters not prohibited.

A request for information which merely inquires about the status of a proceeding without discussing issues or expressing points of view is not deemed an ex parte communication. Such requests should be directed to the Civil Rights hearing clerk. Communications with respect to minor procedural matters or inquiries or emergency requests for extensions of time are not deemed ex parte communications prohibited by § 21.4392. Where feasible, however, such communications should be by letter with copies to all parties. Ex parte communications between a respondent and the responsible agency official or the Administrator with respect to securing such respondent's voluntary compliance with any requirement of Part 18 of this chapter are not prohibited.

§ 21.4395 Filing of ex parte communications.

A prohibited communication in writing received by the Administrator, the responsible agency official, or by the presiding officer shall be made public by placing it in the correspondence file of the docket in the case and will not be considered as part of the record for decision. If the prohibited communication is received orally, a memorandum setting forth its substance shall be made and filed in the correspondence section of the docket in the case. A person referred to in such memorandum may file a comment for inclusion in the docket if he considers the memorandum to be incorrect.

NOTICE TO COMMITTEES

§ 21.4399 Posttermination proceedings.

(a) An applicant or recipient adversely affected by the order terminating, discontinuing, or refusing Federal financial assistance in consequence of proceedings pursuant to this title may request the responsible agency official for an order authorizing payment, or permitting resumption, of Federal financial assistance. Such request shall be in writing and shall affirmatively show that since entry of the order, it has brought its program or activity into compliance with the requirements of the Act, and with the Regulation thereunder, and shall set forth specifically, and in detail, the steps which it has taken to achieve such compliance. If the responsible agency official denies such request the applicant or recipient shall be given an expeditious hearing if it so requests in writing and specifies why it believes the responsible agency official to have been in error. The request for such a hearing shall be addressed to the responsible agency official and shall be made within 30 days after the applicant or recipient is informed that the responsible agency official has refused to authorize payment or permit resumption of Federal financial assistance.

(b) In the event that a hearing shall be requested pursuant to paragraph (a) of this section, the hearing procedures established by this subpart shall be applicable to the proceedings, except as otherwise provided in this section.

These VA regulations are effective upon publication in the FEDERAL REGISTER.

Approved: March 20, 1969.

[SEAL] W. J. DRIVER,
Administrator.

[F.R. Doc. 69-3686; Filed, Mar. 27, 1969; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4568]

[Montana 10680]

MONTANA

Establishment of the UL Bend National Wildlife Refuge Revocation of Executive Order No. 7509 of December 11, 1936

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the public lands in the following described areas, which are under the jurisdiction of the Secretary of the Interior, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, and reserved for the UL Bend National Wildlife Refuge, provided, that the nonpublic lands described in this paragraph shall become a part of said refuge and subject to all laws, rules and regulations applicable thereto, upon acquisition of title thereto, by the United States:

PRINCIPAL MERIDIAN

T. 21 N., R. 28 E.,
Sec. 1;
Sec. 2, lots 1, 2, and 3, S½NE¼, SE¼NW¼, E½SW¼, SE¼;
Sec. 11, NE¼NE¼, NE¼NW¼;
Sec. 12, NE¼NE¼, N½NW¼.
T. 22 N., R. 28 E.,
Sec. 35, E½E½;
Sec. 36, E½, E½W½.

T. 21 N., R. 29 E.,
Sec. 1, lots 1, 2, 3, 4, S½NE¼, SE¼NW¼, E½SW¼, SE¼;
Sec. 2, lots 1, 2, 3, 4, S½NW¼;
Sec. 3;
Sec. 4, lots 1, 2, 3, 4, S½N½, N½S½, S½, SE¼;
Sec. 5, lots 1, 2, 3, 4, S½N½, N½S½, SW¼ SW¼;
Sec. 6, lots 1, 2, 3, 4, SE¼NE¼, NE¼SE¼;
Sec. 7, E½NE¼;
Sec. 8, NW¼NE¼, S½NE¼, NW¼, NE¼ SW¼, N½SE¼;
Sec. 9, lot 1, NE¼, S½NW¼, SW¼, N½ SE¼, SW¼SE¼;
Sec. 10, lots 1, 2, 3, N½, N½S½, SE¼SE¼;
Sec. 11, SE¼SE¼;
Sec. 12, N½NE¼;
Sec. 13, N½NW¼, NW¼SW¼, N½SE¼, SE¼SE¼;
Sec. 14, lot 1, NE¼NE¼, E½NW¼, NW¼ NW¼, NE¼SE¼;
Sec. 15, lots 1 and 2;
Sec. 23, lot 2;
Sec. 24, lot 1;
Sec. 25, lot 3.

T. 22 N., R. 29 E.,
Secs. 31, 32, 33, 34, 35, and 36.

T. 20 N., R. 30 E.,
Sec. 4, lot 4;
Sec. 8, lot 1;
Sec. 22, lots 1, 2, and 3, E½SW¼, W½SE¼;
Sec. 27, lot 1, NW¼NE¼, NE¼NW¼;
Sec. 28, NW¼NE¼;
Sec. 29, lot 3;
Sec. 34, lot 3.

T. 21 N., R. 30 E.,
Secs. 1, 2, 3, 4, and 5;
Sec. 6, lot 7;
Sec. 7, lot 1, E½NE¼, NE¼NW¼;
Sec. 8, N½, N½SE¼;
Sec. 9, N½N½, SW¼NE¼, S½NW¼, SE¼ SE¼;
Sec. 10;
Sec. 11, E½, E½W½, NW¼NW¼;
Sec. 12 and 13;
Sec. 14, E½, E½W½, SW¼NW¼, W½ SW¼;
Sec. 15, S½, NW¼;
Sec. 16;
Sec. 17, NW¼NE¼, NW¼NW¼, S½N½, S½;
Sec. 18, lots 3, 4, E½, E½W½;
Sec. 19, lots 1, 2, and 3, NE¼, E½NW¼, NE¼SW¼;
Sec. 20;
Sec. 21, E½E½, NW¼NE¼, NE¼NW¼;
Secs. 22, 23, and 24;
Sec. 25, NE¼NE¼, W½NE¼, NW¼;
Sec. 26, N½NE¼, SW¼NE¼, NW¼, N½ SW¼, SW¼SW¼, NW¼SE¼;
Sec. 27;
Sec. 28, E½NE¼, S½;
Sec. 29;
Sec. 30, NE¼SE¼, S½SE¼;
Sec. 31, lots 3 and 7, E½E½, W½NE¼;
Sec. 32;
Sec. 33, NW¼, W½SW¼;
Sec. 34, NE¼, E½NW¼, NE¼SW¼, N½ SE¼;
Sec. 35, lots 2, 3, and 7, N½NW¼, SW¼ NW¼.

T. 22 N., R. 30 E.,
Sec. 12, NW¼NE¼, N½NW¼, NE¼SW¼, S½SW¼, SE¼;
Sec. 13, E½, E½W½, W½SW¼;
Sec. 14, NE¼NE¼, NW¼NW¼, E½SE¼;
Sec. 15, N½NE¼, W½W½, E½SW¼, SW¼ SE¼;
Sec. 22, W½, SW¼NE¼, NW¼SE¼, S½ SE¼;
Sec. 23, E½, E½NW¼, NE¼SW¼;
Secs. 24 and 25;
Sec. 26, N½NE¼, SE¼NE¼, NE¼SE¼;
Secs. 27, 31, 32, 33, and 34;
Sec. 35, S½NE¼, W½, SE¼;
Sec. 36.

T. 22 N., R. 31 E.,
Sec. 6, lots 3 to 7, inclusive, SW¼NE¼, SE¼SW¼, E½SW¼, SE¼;
Sec. 7, lots 3 and 4, E½, E½W½;
Secs. 18, 19, and 30.

The areas described aggregate 39,455.68 acres in Phillips County, of which 2,880 acres are nonpublic.

2. Executive Order No. 7509 of December 11, 1936, establishing the Fort Peck Game Range, now known as the Charles M. Russell National Wildlife Range, is hereby revoked so far as it affects the lands described in paragraph 1 of this order.

RUSSELL E. TRAIN,
Acting Secretary of the Interior.

MARCH 25, 1969.

[F.R. Doc. 69-3726; Filed, Mar. 27, 1969; 8:49 a.m.]